

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 560

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO JURIES; AMENDING SECTION 2-211, IDAHO CODE, TO PROVIDE AN EXEMPTION TO JURY SERVICE; AMENDING SECTION 2-212, IDAHO CODE, TO PROVIDE FOR VOLUNTEER ELECTION SERVICE IN LIEU OF JURY SERVICE AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-303, IDAHO CODE, TO PROVIDE AN EXEMPTION TO CERTAIN COMPENSATION REQUIREMENTS FOR ELECTION PERSONNEL; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 2-211, Idaho Code, be, and the same is hereby amended to read as follows:

2-211. ~~NO EXEMPTIONS.~~ No exemptions for any qualified prospective juror may be granted, except as provided in section 2-212(4), Idaho Code.

SECTION 2. That Section 2-212, Idaho Code, be, and the same is hereby amended to read as follows:

2-212. EXCUSING OR POSTPONING JURY SERVICE -- INQUIRY BY COURT -- GROUNDS FOR EXCUSING OR POSTPONING -- VOLUNTEER ELECTION SERVICE IN LIEU OF JURY SERVICE. (1) The court, or a member of the jury commission designated by the court, upon request of a prospective juror or on its own initiative, shall determine on the basis of information provided on the qualification questionnaire form or interview with the prospective juror or other competent evidence whether the prospective juror should be excused from jury service or have ~~their~~ jury service postponed. The clerk or the jury commissioner shall keep a record of this determination.

(2) A person who is seventy (70) years of age or older shall be permanently excused if the person indicates on the qualification questionnaire form that he or she wishes to be excused. A person who requests to be excused on this basis shall be reinstated to the county jury list by submitting a written request asking to be reinstated for jury service.

(3) A person who is not disqualified for jury service under section 2-209, Idaho Code, may have jury service postponed by the court or the jury commissioner only upon a showing of undue hardship, extreme inconvenience, or public necessity, or upon a showing that the juror is a mother breastfeeding her child.

(a) Any person requesting a postponement shall provide a written statement setting forth the reason for the request and the anticipated date that the reason will no longer exist.

(b) The court or the jury commissioner may require a person requesting a postponement for any medical reason to provide a statement from a medical provider supporting the request.

(c) The postponement, if granted, shall be for a period of time as the court or the jury commissioner deems necessary, at the conclusion of which the person shall reappear for jury service in accordance with the direction of the court or the jury commissioner.

(4) (a) If the county clerk determines that there is a shortage of election personnel necessary to facilitate the operations of an upcoming county-run election, the county clerk may submit a request to the jury commission and the court to offer prospective jurors who request to be excused from jury service, or for a postponement of jury service, pursuant to subsections (2) and (3) of this section, the opportunity to volunteer for election service as poll workers in the next county-run election in lieu of jury service. The county clerk's request shall specify the number of volunteer positions required, as well as the dates and times when such volunteers will need to be available.

(b) If a request is made by a county clerk pursuant to paragraph (a) of this subsection, the court may offer to prospective jurors who have grounds to be excused from jury service or to have jury service postponed the opportunity to serve as volunteer poll workers in accordance with the county clerk's specified needs. The volunteer election service in lieu of jury service provided in this subsection shall be granted only for the number of positions requested by the county clerk and at the discretion of the court.

(c) If a prospective juror accepts the volunteer election service opportunity pursuant to this subsection and completes such service in a manner acceptable to the county clerk, the prospective juror shall be excused from jury service for the next two (2) years. The county clerk shall furnish to the jury commission the names of each prospective juror who accepted the election service in lieu of jury service provided in this subsection and shall indicate whether such prospective juror completed the election service. A prospective juror who accepts the election service pursuant to this subsection, but fails to complete the election service shall be reinstated to the county jury list.

SECTION 3. That Section 34-303, Idaho Code, be, and the same is hereby amended to read as follows:

34-303. APPOINTMENT OF ELECTION JUDGES BY COUNTY CLERK. (1) The county clerk shall appoint two (2) or more election judges, one (1) of whom shall be designated chief judge, and the number of clerks deemed necessary by him for each polling place. In the event a single polling place is designated for two (2) or more precincts, an individual may serve simultaneously on the election board for two (2) or more precincts thus served by a single polling place. The precinct committeemen shall recommend persons for the position in their respective precincts to the county clerk in writing by the fifth Friday prior to the primary election and the county clerk shall appoint the judges from such lists if the persons recommended are qualified.

(2) The chief election judge shall be responsible for the conduct of the proceedings in the polling place. Compensation for all election personnel shall be determined by the board of county commissioners at no less than the minimum wage as prescribed by the laws of the state of Idaho, except for per-

1 sonnel volunteering for election service pursuant to section 2-212, Idaho  
2 Code.

3 (3) Each election board shall contain personnel representing all ex-  
4 isting political parties if a list of applicants has been provided to the  
5 county clerk by the precinct committeemen of the precincts by the prescribed  
6 deadline.

7 (4) In order to provide for a greater awareness of the election process,  
8 the rights and responsibilities of voters and the importance of participat-  
9 ing in the electoral process, as well as to provide additional members of  
10 precinct boards, a county clerk may appoint not more than two (2) students  
11 per precinct to serve under the direct supervision of election board members  
12 designated by the county clerk. A student may be appointed, notwithstanding  
13 lack of eligibility to vote, if the student possesses the following qualifi-  
14 cations:

15 (a) Is at least sixteen (16) years of age at the time of the election for  
16 which he or she is serving as a member of an election board; and

17 (b) Is a citizen of the United States.

18 SECTION 4. An emergency existing therefor, which emergency is hereby  
19 declared to exist, this act shall be in full force and effect on and after  
20 July 1, 2026.